

Mohammad Ali v. State of U.P.

High Court of Judicature at Allahabad · Division Bench (Court No. 21) · 6 March 2024 · 2024:AHC:40714-DB · WRIT - C No. - 7288 of 2024 · **Relegated to a clause 6.5 objection; coercive action stayed pending decision**

HEADNOTE

A writ disputing recorded consumption and a demand notice, said to follow a faulty meter and an unanswered request for a check meter, was not decided on merits. The petitioner was permitted to object under clause 6.5 of the U.P. Electricity Supply Code, 2005 before the authority that issued the notice, which must pass a speaking order; coercive action stays until that objection is decided.

FACTUAL SUMMARY

Mohammad Ali filed a writ against a demand notice dated 2 February 2024 issued by respondent no. 2, calling upon him to pay Rs. 1,01897 and Rs. 30 as notice charges. He said his electricity meter was faulty and that repeated applications for installation of a check meter had drawn no response before the notice was issued. The petition therefore disputed the recorded consumption and the bill raised by the Electricity Department. Counsel for the petitioner was heard; none appeared for the department.

HOLDING-UNITS

HOLDING-UNIT · U.P. Electricity Supply Code, 2005, clause 6.5

consumption-bill dispute relegated to clause 6.5

HOLDING

A dispute challenging recorded electricity consumption and the consequent demand notice, founded on a complaint that a faulty meter was not replaced by a check meter, can be decided under clause 6.5 of the U.P. Electricity Supply Code, 2005. The consumer may file an objection before the authority that issued the notice within two weeks, with a true attested copy of the order, and that authority shall decide it by a speaking order within the next four weeks. Until the objection is decided, no coercive action shall be taken on the notice. If the objection is not filed in time, the licensee may proceed in accordance with law. ¶ 5-8

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ challenging recorded consumption and the demand notice was not decided on merits. The consumer was permitted to file a clause 6.5 objection before the authority that issued the notice, to be decided by a speaking order. ¶ 5-6

para-6.5-objection-before-coercive-recovery Coercive action on the impugned demand notice was stayed until the clause 6.5 objection is decided, with liberty to the licensee to proceed in accordance with law if the objection is not filed within two weeks. ¶ 7-8

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE METER WAS FAULTY, WHETHER A CHECK METER OUGHT TO HAVE BEEN INSTALLED, AND WHETHER THE DEMAND OF RS. 1,01897 WAS CORRECT

Left to respondent no. 2 on the objection under clause 6.5 ¶ 5-6